

Court No. - 5

Case :- WRIT - C No. - 19073 of 2020

Petitioner :- M/S Hind Agro Industries Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And 3 Others

Counsel for Petitioner :- Sant Kumar Mishra, Ashwani Kumar Mishra

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Sri Baleshwar Chaturvedi, learned counsel for Respondent Nos. 1 and 2.

The petitioner had earlier filed Writ-C No. 6486 of 2020, which was dismissed by order dated 27.02.2020 giving liberty to the petitioner to approach Consumer Grievance Redressal Forum for redressal of his grievance by filing a complaint under U.P. Electricity Supply Code, 2005. A direction was also issued to the said forum to decide the said complaint expeditiously, preferably within four weeks.

The grievance of the petitioner is that his complaint has yet not been decided although he has filed the copy of the order of this Court along with complaint.

Sri Baleshwar Chaturvedi, learned counsel for Respondent Nos. 1 and 2 submits that Respondent No.3 may be directed to decide the complaint of the petitioner in accordance with law within time bound period and Respondent No.2 shall file his objection before the Grievance Redressal Forum within two weeks from today, if not filed so far.

In view of the statement given by Sri Baleshwar Chaturvedi, learned counsel for Respondent Nos. 1 and 2, we dispose of this writ petition directing the respondents to file their objection before the Consumer Grievance Redressal Forum within two weeks from today, if not filed so far. The Consumer Grievance Redressal Forum shall pass an appropriate order in accordance with law expeditiously, preferably within next four weeks after giving opportunity of hearing to the petitioner.

It is made clear that we have not expressed any opinion on merits of the case of the petitioner.

Order Date :- 25.11.2020

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(Dr. Y. K. Srivastava, J.) (Surya Prakash Kesarwani, J.)